

3	Hasan – Trust; 30-2022-01268695-PR-OP-CMC	<i>Hasan – Trust (2022-01268695)</i> Pre-trial Motions Petitioner Tariq S. Hasan’s motion for preservation of trust funds (ROA 434) is DENIED. Petitioner’s motion to adjudicate the issue of notice (ROA 442) is DENIED. Petitioner’s motion to allow and determine creditor’s claim (ROA 455) is DENIED. Petitioner’s motion for findings of breach of fiduciary duty (ROA 473) is DENIED. Petitioner’s Motion to Bifurcate and Sequence Consolidated Trial Proceedings (ROA 512) is DENIED. I. MOTIONS TO ADJUDICATE CONTESTED ISSUES By four separate motions (ROAs 434, 442, 455, and 473), Petitioner seeks to adjudicate contested factual and legal issues presented by the pleadings in this proceeding. Each motion is based on evidence presented through declarations and verified pleadings. “It has long been the rule that in probate matters ‘affidavits may not be used in evidence unless permitted by statute. [Citation.]’ [Citation.] Consequently, ‘when challenged in a lower court, affidavits and verified petitions may not be considered as evidence at a contested probate hearing. [Citations.]’” (<i>Estate of Bennett</i> (2008) 163 Cal.App.4th 1303, 1308–1309; see <i>Estate of Lensch</i> (2009) 177 Cal.App.4th 667, 675 [“This rule is consistent with the long-established rule of civil practice that “[a] party is entitled to have received in evidence and considered by the court, before findings are made, all competent, relevant and material evidence on any material issue””].) Not only do the motions improperly attempt to circumvent the parties’ right to an evidentiary hearing, they also seek adjudication of legal issues in violation of Code of Civil Procedure section 437c(t) which allows adjudication of a legal issue